

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

A. LEGAL REQUIREMENTS FOR DEVELOPMENT IMPACT FEE REPORTING

California Government Code §66000 discusses development fees, what they are and how they are to be used. Development fees under AB1600 are not a tax or special assessment, but a monetary exaction that is charged by a local agency to the applicant in connection with the approval of a development project for the purpose of defraying all or a portion of the cost of public facilities related to the development project. State law requires any local agency that imposes development impact fees to prepare an annual report providing certain information about those fees.

Specifically, California Government Code §66006(b) requires the local agency to make the following information available to the public within 180 days of the last day of each fiscal year for each development impact fee, which must be accounted for in a separate fund:

- a. A brief description of the type of fee within the account or fund.
- b. The amount of the fee.
- c. The beginning and ending balance of the account or fund.
- d. The amount collected and interest earned.
- e. An identification of each public improvement on which the fees were expended and the amount of expenditures on each improvement, including the percentage of the cost of the public improvement that was funded with the fees.
- f.
 - i. An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement.
 - ii. An identification of each public improvement identified in a previous report pursuant to clause (i) and whether construction began on the approximate date noted in the previous report.
 - iii. For a project identified pursuant to clause (ii) for which construction did not commence by the approximate date provided in the previous report, the reason for the delay and a revised approximate date that the local agency will commence construction.
- g. A description of each interfund transfer or loan made from the account or fund including the public improvement on which the transferred or loaned fees will be expended, and in the case of an interfund loan, the date on which the loan will be repaid and the rate of interest that the account or fund will receive on the loan.
- h. The amount of refunds made due to sufficient funds being collected to complete financing on incomplete public improvements, and the amount of reallocation of funds made due to administrative costs of refunding unexpended revenues exceeded the amount to be refunded.

In addition, California Government Code Section 66001(d) requires the local agency to make the following findings for the fifth fiscal year following the first deposit into the account or fund, and every five years thereafter, with respect to that portion of the account or fund remaining unexpended, whether committed or uncommitted:

- Identify the purpose to which the fee is to be put,
- Demonstrate a reasonable relationship between the fee and the purpose for which it is charged,
- Identify all sources and amounts of funding anticipated to complete financing on incomplete improvements, and

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

- Designate the approximate dates on which the funding is expected to be deposited into the appropriate account or fund.

B. DESCRIPTION OF THE CITY'S IMPACT FEES

The City of Orinda has established the following Development Impact Fee which are subject to annual reporting as part of the Mitigation Fee Act provisions in California Government Code (CGC) Section 66000 et seq.:

- Transportation Improvement Program Fee (Local Portion), as described in Chapter 3.20 of the Orinda Municipal Code, is imposed on new development to help fund and pay for the construction of needed expansion or offsite capital improvements for roads, bikeways, sidewalks and traffic signals. This fee is accounted for in a separate fund titled as "Transportation Impact Fee Fund".
- Drainage Impact Fee, as described in Chapter 3.24 of the Orinda Municipal Code, is imposed on new development to help pay for a drainage master plan and the construction of improvements recommended in the plan. This fee is accounted for in a separate fund titled as "Drainage Impact Fee Fund".
- Park Dedication and Impact Fee, as described in Chapter 3.28 of the Orinda Municipal Code, is established under the California Government Code Section 66477 known as Quimby Act. The Park Dedication fee is imposed on development to provide funding for acquiring new parklands, building new recreational facilities, and rehabilitating or replacing existing parks and recreation facilities to enable those facilities to provide services to new residents and to offset the loss of private residential recreational and visual open space. This fee is accounted in a separate fund called "Park Dedication Fee Fund".

C. AMOUNTS CHARGED BY THE CITY FOR IMPACT FEES

The amounts charged for the impact fees noted above are dependent upon the type and size of a particular development and were based upon related studies, as adjusted annually by one of the following factors: the change in CPI, change in construction cost index, change in average price of residential real property. The development impact fees as applicable on June 30, 2025, are shown in the table on the following page.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

**Drainage and Park Dedication Fee effective September 16, 2024
(adopted by the City Council Resolution # 31-24)
Transportation Impact Fee effective January 1, 2025,
(as updated by Lamorinda Fee and Financing Authority (LFFA))**

FEE	CALCULATION METHOD	AMOUNT
Transportation (Local Portion) Regional Portion is a pass-through administered by Lamorinda Fee and Financing Authority.	Residential – Per Unit Transit Oriented MF – Per Unit Non-Residential – Per Sq. Ft. Other – Per Trip Generated Adjustments and timing for Regional fee is based on directions from Lamorinda Fee and Finance Authority (LFFA), a JPA. The JPA uses September Change in construction cost index and identifies desired adjustment effective January 1 st .	Single Family \$5,045.11 Multi-Family / 2 nd Unit \$3,531.37 Multi-Family / Transit \$1,871.87 Non-Residential \$5.39 / sq. ft. Other \$555.25 per trip
Drainage Fee	Impervious surface added by new development and adjusted annually by reference to the average increase or decrease in the price of residential real property per OMC 3.28.070 and 3.28.080.	\$1.65 per square foot in excess of 100 feet
Park Dedication Fee	Per Residential Unit Adjusted annually by CPI Change	Single Family (SF) Detached \$22,418 SF Attached or Townhouse \$15,232 Multi-Family Duplex or Condominium \$15,644 per unit

D. CAPITAL IMPROVEMENT PROGRAM (CIP)

California Government Code Section 66002 requires local agencies that have developed a fee program to adopt a Capital Improvement Plan (CIP) indicating the approximate location, size, and timing of projects plus an estimate of the costs for all facilities or improvements that are financed by these fees. A formal CIP is recommended, at a minimum, as a five-year plan. The City produces a five-year CIP which helps to maintain and support the City's General Plan as well as identify infrastructure needed to accommodate the planned development.

The City's current capital improvement plan for Fiscal Years 2025/26 – 2029/30 can be found on the City's website: [Capital-Improvement-Plan](#). Information on CIP projects budget funded by the development impact fee can be found in the following table including projects, estimated project budget funded by impact fees, project budget funded by other funds, and estimated % of project funded with development impact fees.

The City appropriate CIP expenditures of these fees as part of the Biennial Budget adoption.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

**Capital Improvement Plan Budget for Projects Funded with Impact Fee
for Fiscal Years 2025-26 - 2029-30**

	Project number	FY 2025-26	FY 2026-27	FY 2027-28	FY 2028-29	FY 2029-30	Total 5-Years Budget	Project Budget for Other Funds	Estimated % of Project Funded with Fees
Transportation Impact Fee Fund									
Traffic Signal Operation Improvements	3608	\$ 50,000	\$ -	\$ -	\$ -	\$ -	\$ 50,000	\$ 1,981,880	2%
Annual Bicycle, Trails, and Walkways Prog	4109	5,000	30,000	30,000	30,000	-	95,000	172,500	36%
2027 Annual Pavement Rehabilitation	4198	-	-	400,000	-	-	400,000	2,475,000	14%
Moraga Way Pathway - Phase 3	4199	130,000	-	-	-	-	130,000	150,000	46%
2029 Annual Pavement Rehabilitation	5029	-	-	-	-	90,000	90,000	2,985,000	3%
Total Transportation Impact Fee Fund		185,000	30,000	430,000	30,000	90,000	765,000	7,764,380	9%
Drainage Impact Fee Fund									
Storm Drain Plan and Inventory	4092	15,000	15,000	15,000	-	-	45,000	30,000	60%
Annual Drainage Facilities Improvement	4111	215,000	165,000	165,000	165,000	165,000	875,000	-	100%
Miner Rd. - Camino Don Miguel Culvert Re	5013	25,000	100,000	-	-	-	125,000	-	100%
2028 Annual Stormdrain Repair (Cat. B)	5030	-	-	-	100,000	-	100,000	300,000	25%
2029 Annual Stormdrain Repair (Cat. B)	5031	-	-	-	-	100,000	100,000	100,000	50%
Total Drainage Impact Fee Fund		255,000	280,000	180,000	265,000	265,000	1,245,000	430,000	74%
Park Dedication Fee Fund									
Community Center Window	4016	95,000	-	-	-	-	95,000	175,000	35%
Buildings and Parks Accessibility	4086	15,000	15,000	15,000	15,000	15,000	75,000	-	100%
Mini Park (Crossroads Park)	4103	30,000	-	-	-	-	30,000	315,000	9%
Community Park Master Plan and	4112	45,000	140,000	-	-	-	185,000	232,000	44%
Lighting Retrofit (LED) – Wilder fields #1	4195	73,300	-	-	-	-	73,300	226,700	24%
Orinda Oaks Park Restroom Renovation	5020	20,000	-	-	-	-	20,000	-	100%
Wilder Park Field #4 - Replace Synthetic	5035	-	-	-	325,000	-	325,000	275,000	54%
Total Park Dedication Fee Fund		278,300	155,000	15,000	340,000	15,000	803,300	1,223,700	40%

E. FINANCIAL SUMMARY REPORT FOR DEVELOPMENT IMPACT FEES

As provided under State Government Code Section 66006(b)(1)(c-d) the City must account in each of the Impact Fee Funds for: Beginning Balance; Fees Collected, Interest and other Revenue; Expenditures; and the Ending Balance. If there were any interfund loans or transfers those must also be disclosed. The City did not have any loans or inter-fund transfer transactions in the Fiscal Year ending June 30, 2025. The following table displays the financial summary for the development impact fees.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

**Statement of Revenue, Expenditures, and Change in Fund Balance
For the Year Ended June 30, 2025**

	<u>Transportation Impact Fee</u>	<u>Drainage Impact Fee</u>	<u>Park Dedication Impact Fee</u>
REVENUES			
Fees	\$ 8,002	\$ 49,810	\$ 34,585
Interest	32,632	42,331	40,016
Total Revenues	<u>40,635</u>	<u>92,141</u>	<u>74,601</u>
EXPENDITURES			
Expenditures	<u>29,299</u>	<u>181,788</u>	<u>67,736</u>
Total Expenditures	<u>29,299</u>	<u>181,788</u>	<u>67,736</u>
REVENUES OVER (UNDER) EXPENDITURES	11,336	(89,647)	6,865
Fund Balance, Beginning of Year	<u>765,506</u>	<u>1,068,576</u>	<u>952,444</u>
Fund Balance, End of Year	<u><u>\$ 776,842</u></u>	<u><u>\$ 978,929</u></u>	<u><u>\$ 959,309</u></u>

F. FUND EXPENDITURES BY PROJECT

The Government Code Section 66006(b)(1)(e) requires the City to disclose additional information related to the project expenditures from each of the Impact Fee Funds. Specifically, the report must identify:

- each public improvement on which fees were expended.
- the amount of the expenditures on each improvement; and
- the total percentage of the cost of the public improvement that was funded with impact fees.

The following tables provide additional details for each of the impact fees.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

**IMPACT FEE EXPENDITURES BY PROJECT
For the Year Ended June 30, 2025**

	<u>Project Number</u>	<u>Impact Fees</u>	<u>Other Funds</u>	<u>Total Expenditures</u>	<u>% Paid By Fees</u>
Transportation Impact Fee Fund:					
Camino Pablo Pathway Rehab	4076	\$ 25,951	\$ 111,637	\$ 137,587	19%
Moraga Way Pathway - Phase 3 4199	4199	3,348	-	3,348	100%
Total Transportation Fee Fund Expenditures		29,299	111,637	140,935	21%
Drainage Impact Fee Fund:					
Orchard SD Repair PL-409 & PL-513	3101	28,000	148,294	176,294	16%
Ivy Dr. SD Repairs, PL-958/959 & PL864	3102	28,000	144,244	172,244	16%
Storm Drain Plan and Inventory	4092	225	-	225	100%
Storm Drain Liner Ivy Dr (48in)	4094	563	-	563	100%
Annual Drainage Maint. Repair	4111	125,000	25,742	150,742	83%
Total Drainage Fee Fund Expenditures		181,788	318,280	500,068	36%
Park Dedication Fee Fund:					
Community Center Accessibility	4086	18,637	-	18,637	100%
Mini Park (Crossroads Park)	4103	4,920	-	4,920	100%
Community Center Accessibility	4112	15,801	-	15,801	100%
Art & Garden Center Audio Visual	4181	28,378	-	28,378	100%
Total Park Dedication Fund Expenditures		67,736	-	67,736	100%

G. IMPACT FEE LOANS / TRANSFERS AND REFUNDS

As provided in Government Code Sections 66006(b)(1) (g and h) the City is also required to disclose any interfund transfers, loans, and refunds of fee. There were no interfund transfers or loans involving the listed Impact Fees. Likewise, the City did not issue any refunds for the year ending June 30, 2025.

H. ANALYSIS OF FUNDS HELD FOR 5 OR MORE YEARS

The California Government Code Section 66001(d) contains a separate requirement to evaluate every five years balances held and make certain additional disclosures. The purpose of the review is to identify monies that have been collected and held for a period of more than five years and to make appropriate disclosures.

The City of Orinda has analyzed the balance of monies held in each Impact Fee Fund, at the end of Fiscal Year 2024-25 and compared it to the total Impact fees collected from July 1, 2020, through June 30, 2025 (5 Year Period).

When this report is presented to the City Council at a public meeting, they will also be requested to adopt a resolution making findings regarding the continued retention of funds held in excess to five years to complete the planned projects.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

TRANSPORTATION IMPACT FEE FUND

**Statement of Revenue, Expenditures, and Change in Fund Balance
For the Fiscal Years 2020-21 through 2024-25**

	<u>FY 2020-21</u>	<u>FY 2021-22</u>	<u>FY 2022-23</u>	<u>FY 2023-24</u>	<u>FY 2024-25</u>
REVENUES					
Fees	\$ 132,765	\$ 48,599	\$ 38,082	\$ 18,964	\$ 8,002
Interest	11,581	6,323	18,300	22,909	32,632
Other Revenues ⁽¹⁾	-	77	53,406	428,001	-
Total Revenues	<u>144,346</u>	<u>54,999</u>	<u>109,787</u>	<u>469,874</u>	<u>40,635</u>
EXPENDITURES					
Expenditures	<u>112,901</u>	<u>85,660</u>	<u>108,476</u>	<u>651,951</u>	<u>29,299</u>
Total Expenditures	<u>112,901</u>	<u>85,660</u>	<u>108,476</u>	<u>651,951</u>	<u>29,299</u>
REVENUES OVER (UNDER) EXPENDITURES	31,445	(30,661)	1,312	(182,077)	11,336
Fund Balance, Beginning of Year	<u>945,487</u>	<u>976,932</u>	<u>946,271</u>	<u>947,583</u>	<u>765,506</u>
Fund Balance, End of Year	<u>\$ 976,932</u>	<u>\$ 946,271</u>	<u>\$ 947,583</u>	<u>\$ 765,506</u>	<u>\$ 776,842</u>

Five- Year Revenue Test Using First In First Out Method

Revenue Available:					
Current Fiscal Year	\$ 144,346	\$ 54,999	\$ 109,787	\$ 469,874	\$ 40,635
Prior Fiscal Year (2-Year Old Funds)	61,228	144,346	54,999	109,787	469,874
Prior Fiscal Year (3-Year Old Funds)	136,152	61,228	144,346	54,999	109,787
Prior Fiscal Year (4-Year Old Funds)	212,029	136,152	61,228	130,846	54,999
Prior Fiscal Year (5-Year Old Funds)	163,813	212,029	136,152	-	101,547
In Excess of Five Prior Fiscal Years	<u>259,365</u>	<u>337,517</u>	<u>441,071</u>	<u>-</u>	<u>-</u>
Total Revenue Available	<u>\$ 976,932</u>	<u>\$ 946,271</u>	<u>\$ 947,583</u>	<u>\$ 765,506</u>	<u>\$ 776,842</u>

Notes:

(1) Other revenues include project reimbursement for fair share improvements, grant from LAMORINDA for smart signals and transfers in associated with the closure of CIP projects.

As of June 30, 2025, none of the Transportation Impact Fee Fund balance is held for more than five years.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

DRAINAGE IMPACT FEE FUND

**Statement of Revenue, Expenditures, and Change in Fund Balance
For the Fiscal Years 2020-21 through 2024-25**

	<u>FY 2020-21</u>	<u>FY 2021-22</u>	<u>FY 2022-23</u>	<u>FY 2023-24</u>	<u>FY 2024-25</u>
REVENUES					
Fees	\$ 346,326	\$ 205,559	\$ 158,055	\$ 65,686	\$ 49,810
Interest	16,878	11,929	24,655	26,324	42,331
Total Revenues	<u>363,204</u>	<u>217,488</u>	<u>182,709</u>	<u>92,010</u>	<u>92,141</u>
EXPENDITURES					
Expenditures	8,851	165,699	706,296	329,433	181,788
Total Expenditures	<u>8,851</u>	<u>165,699</u>	<u>706,296</u>	<u>329,433</u>	<u>181,788</u>
REVENUES OVER (UNDER)	354,353	51,789	(523,586)	(237,423)	(89,647)
Fund Balance, Beginning of Year	<u>1,423,444</u>	<u>1,777,797</u>	<u>1,829,586</u>	<u>1,306,000</u>	<u>1,068,576</u>
Fund Balance, End of Year	<u>\$ 1,777,797</u>	<u>\$ 1,829,586</u>	<u>\$ 1,306,000</u>	<u>\$ 1,068,576</u>	<u>\$ 978,929</u>

Five- Year Revenue Test Using First In First Out Method

Revenue Available:					
Current Fiscal Year	\$ 363,204	\$ 217,488	\$ 182,709	\$ 92,010	\$ 92,141
Prior Fiscal Year (2-Year Old Funds)	258,769	363,204	217,488	182,709	92,010
Prior Fiscal Year (3-Year Old Funds)	563,634	258,769	363,204	217,488	182,709
Prior Fiscal Year (4-Year Old Funds)	336,031	563,634	258,769	363,204	217,488
Prior Fiscal Year (5-Year Old Funds)	256,158	336,031	283,829	213,165	363,204
<i>In Excess of Five Prior Fiscal Years</i>	<u>-</u>	<u>90,459</u>	<u>-</u>	<u>-</u>	<u>31,377</u>
Total Revenue Available	<u>\$ 1,777,797</u>	<u>\$ 1,829,586</u>	<u>\$ 1,306,000</u>	<u>\$ 1,068,576</u>	<u>\$ 978,929</u>

The Drainage Impact Fee has a fund balance of \$ 978,929 out of which \$31,377 is held for more than five years. The City is planning to use these funds on the Annual Drainage Facilities Improvement Program project which is estimated to expend \$215,000 during the fiscal year 2025-26. All current projects, including all funding sources, can be found in the Fiscal Years 2025-26 – 2029-30 Capital Improvement Plan which is summarized in the table on page 4.

**CITY OF ORINDA
ANNUAL REPORT OF DEVELOPMENT IMPACT FEES
FOR THE FISCAL YEAR ENDED JUNE 30, 2025**

PARK DEDICATION FEE FUND

**Statement of Revenue, Expenditures, and Change in Fund Balance
For the Fiscal Years 2020-21 through 2024-25**

	FY 2020-21	FY 2021-22	FY 2022-23	FY 2023-24	FY 2024-25
REVENUES					
Fees	\$ 35,019	\$ 104,403	\$ 153,368	\$ 85,729	\$ 34,585
Interest	11,176	6,325	18,399	24,315	40,016
Total Revenues	<u>46,196</u>	<u>110,728</u>	<u>171,767</u>	<u>110,045</u>	<u>74,601</u>
EXPENDITURES					
Expenditures	315,666	145,829	104,654	177,172	67,736
Total Expenditures	<u>315,666</u>	<u>145,829</u>	<u>104,654</u>	<u>177,172</u>	<u>67,736</u>
REVENUES OVER (UNDER)	(269,470)	(35,101)	67,113	(67,128)	6,865
Fund Balance, Beginning of Year	1,257,029	987,559	952,458	1,019,572	952,444
Fund Balance, End of Year	<u>\$ 987,559</u>	<u>\$ 952,458</u>	<u>\$ 1,019,572</u>	<u>\$ 952,444</u>	<u>\$ 959,309</u>

Five- Year Revenue Test Using First In First Out Method

Revenue Available:					
Current Fiscal Year	\$ 46,196	\$ 110,728	\$ 171,767	\$ 110,045	\$ 74,601
Prior Fiscal Year (2-Year Old Funds)	125,179	46,196	110,728	171,767	110,045
Prior Fiscal Year (3-Year Old Funds)	220,382	125,179	46,196	110,728	171,767
Prior Fiscal Year (4-Year Old Funds)	187,847	220,382	125,179	46,196	110,728
Prior Fiscal Year (5-Year Old Funds)	148,667	187,847	220,382	125,179	46,196
<i>In Excess of Five Prior Fiscal Years</i>	<u>259,288</u>	<u>262,126</u>	<u>345,320</u>	<u>388,529</u>	<u>445,973</u>
Total Revenue Available	<u>\$ 987,559</u>	<u>\$ 952,458</u>	<u>\$ 1,019,572</u>	<u>\$ 952,444</u>	<u>\$ 959,309</u>

As of June 30, 2025, the Park Dedication Fee Fund balance is estimated at \$959,309 and of this amount \$445,973 was developer fees that continued to be held for more than five years. The City is planning to use these funds on several projects, as identified in the capital improvement plan adopted on June 3, 2025. These projects which include Community Center Window Replacement, Lighting Retrofit (LED)-Wilder fields, and Wilder Park Field #4 - Replace Synthetic Turf, are estimated to use a total of \$448,300 in Park Dedication Fees in next three years.

All current projects, including all funding sources, can be found in the Fiscal Years 2025-26 – 2029-30 Capital Improvement Plan which is summarized in the table on page 4.